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'Yours in Struggle for Majimbo'. Nationalism and the Party Politics of Decolonization in Kenya, 1955–64

Over the past 30 years or more, the history of Kenyan politics has been enveloped in the grand meta-narrative of the rise of nationalism. This has been the history made by the victors in Kenya's independence elections of 1963, the Kenya African National Union (KANU). This version of Kenya's past has consciously obscured the uncomfortable ambiguities of the Mau Mau years (1952–60) and neatly avoided any acknowledgment of those who then held alternative visions of Kenya's post-colonial political future.[1] Among those alternatives was the policy of *majimboism*, the centre-piece of the political agenda of KANU's rival party, the Kenya African Democratic Union (KADU). The term *majimboism* means 'regionalism', and it was initially promoted by KADU in the pre-independence negotiations between 1960 and 1963 as the basis for a devolved constitutional arrangement that would protect smaller 'minority' communities from the dominance of larger communities. This was a proposal for decentralization, even federation, in which six or more provinces comprising independent Kenya would each have equal status. But in the heated politics of the early 1960s the rhetoric of KANU turned the federalist goal of *majimboism* into a slur: *majimboists* were derided as tribalists who opposed the broader goals of nationalism. KANU's victory in the 1963 elections was thus a victory for nation over region, and for nation over tribe. As Kenya became a de facto one-party state with the opposition KADU MPs rapidly crossing the floor in the months following independence, the impetus for *majimboism* quickly gave way to Jomo Kenyatta's call for unity through *harambee* (all working together). Everyone was by then a nationalist, and *majimboism's* troubled history was best forgotten.

There have been three historical interpretations of these events. Gary Wasserman was the first to dismiss *majimboism* as part of the British plot to subvert the potential radicalism of Kenyan nationalism, represented in men such as Jomo Kenyatta and Oginga Odinga, and turn it toward more conservative and compliant ends. His interpretation has influenced subsequent generations of historians of British imperialism. The political scientist Donald

1 For recent commentaries on the need to break through the meta-narrative of nationalism, see Marshall Clough, *Mau Mau Memoirs. History, Memory and Politics* (Boulder, CO and London 1998); John Lonsdale, 'KAU's Cultures. Imaginations of Community and Constructions of Leadership in Kenya after the Second World War', *Journal of African Cultural Studies*, 13 (2000), 107–24.

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Rothchild then offered a more subtle analysis of *majimboism* as a key feature in the racial bargaining that marked Kenya's politics in the late 1950s and early 1960s, as liberals sought to reconstruct political platforms in the wake of the Mau Mau struggle. Rothchild's account gave prominence to those Europeans who 'broke ranks' to secure multi-racial alliances. A third, and currently dominant view is best represented in the writings of Kenya's senior living historian, Bethwell Alan Ogot. In common with other historians of Kenya's nationalist school, Ogot dismisses *majimboism* as a brief and trivial distraction that did nothing to disrupt the unity of the nationalist cause. For Ogot, the differences between KANU and KADU were minimal and so quickly disappeared once the influence of the colonialists had been removed, hence the rapidity with which Kenya became a one-party state in 1964, only 11 months after independence. While Ogot's analysis has the advantage of recognizing African agency, none of the three approaches to the politics of Kenya's independence struggle have seriously examined the motives and organization of KADU in its promotion of *majimboism*.[2]

Yet there are powerful reasons for returning to this forgotten history. Since the early 1990s, *majimboism* has been revived in Kenya by many of the same politicians who began their careers within the KADU fold some 40 years ago. Ethnic violence in the election campaigns of 1992 and 1997 was stimulated by cries for *majimboism*, and in the current discussions of constitutional reform in Kenya a *majimboist* solution, devolving powers to the regions, remains an option that commands support in many parts of the country.[3] The *majimboist* alternative vision of Kenya's future may have dimmed after 1964, but it is a political idea that refuses to die.

The history of *majimboism* is rooted in the politics of Kenya's decolonization. The circumstances that speedily brought Kenyatta and KANU to an inclusive national politics in 1961, and KADU's anti-Mau Mau loyalists to an exclusive, ethnically based regionalism, had at their core a deep irony that is not reflected in the meta-narrative of nationalist history. Kenya's postwar national parties were coalitions of varied and diverse local politics, complex organizations within which negotiation and compromise were constant

2 Gary Wasserman, *Politics of Decolonization. Kenya, Europeans and the Land Issue 1960–1965* (Cambridge 1976), and Robert Holland, *European Decolonization 1918–1981. An Introductory Survey* (Basingstoke 1985); Donald Rothchild, *Racial Bargaining in Independent Kenya* (London 1973) and Keith Kyle, *The Politics of the Independence of Kenya* (Basingstoke 1999); B.A. Ogot, 'The Decisive Years' in B.A. Ogot and W.R. Ochieng' (eds), *Decolonization and Independence in Kenya, 1940–1993* (London, Nairobi and Athens, OH 1995), and for more radical nationalist views, see Peter Anyang Nyong'o, 'State and Society in Kenya. Disintegration of Nationalist Coalitions and the Rise of Presidential Authoritarianism 1963–78', *African Affairs*, 88 (1989), 229–52.

3 M. Ngunyi, 'Resuscitating the Majimbo Project. The Politics of Deconstructing the Unitary State in Africa' in A. Olukoshi and L. Laasko (eds), *Challenges to the Nation-State in Africa* (Uppsala 1996); Herve Maupeu, 'Etat Kenyan et conflits ethniques dans la Rift Valley (1991–93)', *Studia Africana*, no. 5 (1994), 37–46; Marcel Rutten, Alamin Mazrui and Francois Grignon (eds), *Out for the Count. The 1997 General Elections and Prospects for Democracy in Kenya* (Kampala 2001); John O. Oucho, *Undercurrents of Ethnic Conflict in Kenya* (Leiden 2002).

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features of policy-making and decision-taking. KANU was stigmatized by many as the party of Mau Mau. This was true in part; many former detainees took prominent positions within the party. But KANU was, of course, also the party of those among the Gikuyu and Luo who had vehemently opposed Mau Mau. Despite the perceived ethnic exclusivity of the Mau Mau movement, KANU adopted an inclusive, nationalist programme that rejected all forms of ethnic particularism, most especially *majimboism*. KADU, on the other hand, so often presented by its supporters within the British establishment as representing a combination of the 'loyal tribes' who had staunchly opposed the threat of Mau Mau, and the European multi-racialists who would see to it that appropriate pro-British policies were retained after independence, instead retreated into *majimboism*'s divisive ethnic politics amid threats of secession and violence. We need to begin by reflecting upon the developments that shaped these political postures.

The idea of *majimboism* was conceived in the re-emergence of African politics in the latter years of the Mau Mau Emergency, between 1955 and 1960. African political parties had been banned under the Emergency regulations in June 1953, but the introduction of the Lyttelton Constitution in 1954 opened the door to African and Asian participation in central government through an electoral system. This reform was to be closely controlled. From June 1955, political parties were again permitted, but only at district level and with the discretion of colonial officers who approved parties for registration. National parties were not permitted in this colonial 'micro-management' of re-emergent political activism. A plethora of local parties soon sprang up under the supervision of the state. Among the first to be registered were the Nairobi District African Congress (later to split in 1957 with the formation of the Nairobi People's Convention Party), the Mombasa African Democratic Union, the Abagusii Association of South Nyanza, the Taita African Democratic Union, the Nakuru African Progressive Party and the Abaluhya People's Association. Others soon followed, many of them cultivated by the district administration. The aim of these colonial reforms, Ogot has astutely observed, 'was to create a base upon which a collaborative African leadership could emerge and to undermine the support of Mau Mau freedom fighters'.[4]

Though African politicians were by no means always compliant with these aims, colonial policies did have the effect of nurturing local politics while hindering the expression of national aspirations. Moreover, the British sought to reward their allies while punishing their enemies. In the Central Province, the heartland of Mau Mau support, the registration of parties was not permitted (so as to minimize Gikuyu influence). But in the Maasai and Kalenjin rural areas of the Rift Valley and Southern Provinces, where formal politics had been slow to emerge after the second world war, officials gave encouragement to the few politicians who were already active to now consolidate their support

4 Ogot, 'The Decisive Years', op. cit., 48.

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through local party organizations. Among these were Taita arap Towett, J.M. ole Tameno, Daniel T. arap Moi, J.K. ole Tipis and F.K. arap Chumah — typical of a younger generation (all were around 30 years of age) of mission-educated, local councillors and school teachers then being nurtured to replace the older, uneducated traditionalist chiefs who had previously been the mainstay of colonial government. All five of these Kalenjin and Maasai leaders were conservative gradualists in political terms, and all were identified with the colonial government's campaign against Mau Mau. These men each stood for election to the Legislative Council in 1957. Only Moi was successful, beating Towett and ole Tipis to represent the Rift Valley. But the elections of 1957 were very far from nationalist politics, or even from party politics. Moi, Towett and ole Tipis had gone on the campaign trail together, sharing the hustings and politely taking turns to speak. Their electorate was selected by a qualified franchise, defined on the basis of income, education and government service. This gave some electors two votes, others three. In the Rift Valley, from an estimated population of 900,000 there were fewer than 5000 registered voters. This narrow class-based and regional focus of politics was reinforced by colonial regulations that prevented those elected to the Legislative Council from consolidating their position within broader party affiliations. Even when the Lennox Boyd Constitution of 1957 increased the number of African representatives on the Legislative Council from 8 to 14, Towett and ole Tipis being successful in the next ballot, there was still no opportunity allowed for national political organization.[5] Local networks of patronage and clientage therefore continued to mobilize African politics for Moi and others like him, including future fellow stalwarts of KADU Masinde Muliro and Ronald Ngala (elected in 1957 for North Nyanza and Coast respectively). The colonial administration encouraged these men in building local power bases, thus developing and strengthening the politics of the non-Gikuyu areas. During 1958, Moi first established the Baringo District Independence Party in his homeland, and then helped to foster similar organizations in the Kalenjin districts of Kipsigis, Nandi and Elgeyo. Over the next two years, he relentlessly toured the Kalenjin-speaking areas of the Western Highlands in his Land Rover, drumming up support at well-attended political rallies and speaking to the various African District Councils, all of this facilitated by the colonial administration.[6] When in Nairobi on Legislative Council business, Moi variously shared his Pumwani lodgings with ole Tipis and J.K. Seroney, who represented the Nandi area, and became a close friend of Ronald Ngala, the coastal politician who would go on to lead KADU. These rural men, raw, inexperienced politicians and staunch Christians for the most part, had few links and little in common with the Gikuyu and Luo politicians who sat on the Legislative Council alongside them, men such as the rural businessman Oginga Odinga, the smart young trade unionist Tom Mboya and the returned American graduate Julius Kiano, whose

5 Ibid., 54–6, 60–1. For an excellent contemporary overview, see A.J. Hughes, *East Africa. The Search for Unity* (Harmondsworth 1963), 93–145.

6 Andrew Morton, *Moi — the Making of an African Statesman* (London 1998), 87–8.

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political heritage was mainly urban, who were enveloped in ideological debates, and many of whom had past connections with the nationalist Kenya African Union (KAU), banned in 1953. The commitment of Moi and his confederates to regional politics lacked nationalist aspiration: 'Tribalism will live for at least another fifty years', Daniel arap Moi told the BBC when interviewed in August 1958.[7] The seeds of *majimboism* had been sown. They would now be watered by the storm of rapid political change.

By the summer of 1959, the African elected members in the Legislative Council had effectively manoeuvred around the ban on national parties by separating into voting blocks. These groupings would eventually result in the formation of the two national parties that would contest the independence elections. In July 1959, the Kenya National Party (KNP) was formed by 8 of the 14 African members (Moi, Towett, ole Tipis, Ngala, Muliro, Khamisi, Nyaga and Muimi).[8] In response, Oginga Odinga, Tom Mboya and Julius Kiano announced that the remaining rump of African members would form the Kenya Independence Movement (KIM). Though Ogot describes this as 'the first split in the ranks of African nationalism', it more obviously reflected a very significant divide in political ideology and practice: between those who had embraced the notion of regional politics, advocated gradual political reform and adopted a broadly conservative political ideology (the KNP), and those who had all along argued for a national perspective, campaigned more aggressively for rapid political change and supported a more radical and progressive policy agenda (the KIM).[9]

The events at the first Lancaster House talks, called in January the following year to open discussion on Kenya's path to independence, only served to emphasize the growing differences between the two groups. Following Lancaster House, with independence now the declared goal of British policy, the protagonists rushed to secure their political constituencies. By April 1960, Muliro stood at the head of the Kenya African People's Party, and Moi spearheaded the Rift Valley politicians in drawing the four district parties of the Western Highlands into a new larger grouping, the Kalenjin Political Association.[10] While Muliro and Moi followed their own rural political instincts to consolidate local power bases, the members of the KIM looked toward the national stage. In May 1960, the KIM transformed itself into KANU, with James Gichuru taking on the role of acting President (in preparation for Kenyatta's eventual release from detention, the achievement of which KANU placed at the head of its political manifesto). In reaction to the forma-

7 Kyle, *The Politics of the Independence of Kenya*, op. cit., 77.

8 Simiyu Wandibba, *Masinde Muliro. A Biography* (Nairobi 1966), 14.

9 Ogot, 'The Decisive Years', op. cit., 61, for the quotation; Wandibba, *Masinde Muliro*, op. cit., 15–17, for context.

10 *East African Standard*, 22 April 1960, for an account of the meeting. Kalenjin political identity had first begun to take shape in the 1940s, in the form of the Kalenjin Union, established as an organization for ex-servicemen, and then through the activities of Kalenjin students at the Alliance High School and at Makerere College. See Benjamin E. Kipkorir, *The Marakwet of Kenya* (Nairobi 1982).

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tion of KANU, in June 1960 Muliro and Moi held a mass rally of 8000 followers at Kericho, where they were joined by Ronald Ngala representing the Coastal African People's Union and by delegates from the Maasai United Front and the Somali National Association. At the end of a long day of negotiations the merger to form KADU was announced. Smaller district parties, among them the North Nyanza District Congress and the Kilifi African People's Union, now also affiliated with KADU.[11] Each faction within the coalition represented the local interests of its own region, and each wanted protection for those interests under the independence constitution. *Majimboism* was thus the common thread linking the Rift Valley and Coast to the cause of the Somali National Association and also to many other, smaller causes. In the wake of the Kericho rally the proclamations of *majimboism* became increasingly belligerent, as KADU's 'Youth Wingers' declared themselves ready to protect the interests of their peoples by force of arms. From the beginning, KADU's *majimboist* ambitions were defensive in character and born out of fear — and for Moi and the belligerent Kalenjin this meant fear of the Gikuyu colonization of the Rift Valley.[12]

The fears that fed the *majimboist* cause were the product of colonial rule. The mobilization of the smaller ethnic groups within KADU established a bulwark against the dominance of the larger, wealthier and better-educated Luo and Gikuyu, groups that had taken earlier and lasting advantage of the opportunities of colonialism. KADU's promotion of *majimboism* was a logical and potentially effective means to disarm the overwhelming political and economic power represented by this Luo–Gikuyu axis within KANU. The demonizing of the Gikuyu in the colonial propaganda campaign against Mau Mau between 1952 and 1960 had done much to foster distrust of all Gikuyu politicians, but a deeper history of Gikuyu colonization of Kenya's Rift Valley and Western Highlands over more than 50 years of colonial rule gave the fear of Gikuyu domination a sharper edge. Similarly, the dominant position of the Luo in the labour market, particularly for skilled work of all kinds, was popularly perceived by the 1950s as a barrier to the advancement of others, especially the Abaluhya, Kalenjin and coastal peoples who were by then seeking to move into the labour market in increasing numbers. These economic rivalries were the very stuff of Kenya's local politics by the 1950s and they played a significant role in shaping the KANU and KADU alliances. After 1960, the fear of economic domination and political exclusion greatly stimulated the *majimbo* cause.

The new national parties first locked horns in the general election of February 1961. Despite its poor organization and the divisions and rivalries that led some members to stand as 'independents' against official party candidates, KANU won a large enough victory in 1961 to form an interim government, but the

11 Ogot, 'The Decisive Years', op. cit., 65; Wandibba, *Masinde Muliro*, op. cit., 16.

12 Claire Medard, 'Stratégies territoriales. Territoire ethnique et territoire étatique au Kenya' (Colloque Politiques des territoires, Bordeaux, October 1994), 13–15; Cherry Gertzel, *The Politics of Independent Kenya 1963–68* (Nairobi 1967), 9–10; Morton, *Moi*, op. cit., 93–4.

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sticking point was Kenyatta. KANU decided to make Kenyatta's release a condition of taking office, and it urged KADU to show solidarity with it in this goal. Whilst KADU's African leadership had publicly supported the campaign for Kenyatta's release, it took the view that this could be more readily negotiated by an interim African government. KADU therefore entered discussions with Governor Renison early in March 1961, to the outrage of KANU. After several weeks of brokering, Renison was able to announce on 18 April 1961 that KADU would form a minority coalition government in alliance with the liberal European New Kenya Group (NKG) and the Kenya Asian Party, thus, at least briefly, pushing out KANU — and Kenyatta — to the political margins.

European politics at this point played an important role in consolidating the ideology of *majimboism* within KADU. In the months before the first Lancaster House conference of 1960, the political unity of Kenya's European community had been irrevocably split. The United Party, which in 1960 became the Kenya Coalition, had long enjoyed the support of the vast majority of the European population. Led by Puck Briggs and Cavendish-Bentinck, the Kenya Coalition represented traditional settler conservatism. Supported by smaller European landowners and by the multitude of European newcomers to the colony in the postwar years, most of whom filled lower-order jobs in the urban areas, the party campaigned against multi-racialism, seeking to preserve the colour bar and to maintain separate voting rolls and reserved representation for the European minority. The rival European party, the New Kenya Group (NKG), was formed by Michael Blundell as a liberal, multi-racial alternative to the older style of European politics. Blundell's appeal was to wealthier farmers and the professional community, groups that were likely to be more secure in the transition from settler colonialism to majority rule and who therefore had reason to negotiate a compromise with the conservative African middle class who they hoped would shape Kenya's future. Though most commentators have lampooned the Kenya Coalition as the dinosaurs of an imperial past, while portraying Blundell and his supporters as the 'progressive' visionaries of a 'New Kenya', it was recognized at the time that the goals of the NKG remained remarkably narrow and sectional. Blundell skilfully tied European interests to those of 'minority' African groups, linking the racial bargaining for the protection of European privilege with the issue of regional autonomy. The strategy of Blundell and the NKG, writes Ogot, was 'first, to create a multi-racial state as an alternative to all-African government, then, to destroy Kenyatta politically by forming a government without him and, finally, to divide African politicians and force a *majimbo* (decentralized) constitution with minority safeguards'.[13] This interpretation fairly reflects the reality of events as they unfolded. The strategy would fail overall, but its goals drew the NKG very firmly into the embrace of KADU.

Majimboism featured prominently in the campaign rhetoric of the 1961

13 Wasserman, *Politics of Decolonization*, op. cit., 75–104; Hughes, *East Africa*, op. cit., 131–4; and Rothchild, *Racial Bargaining*, op. cit., for the analysis; Ogot, 'The Decisive Years', op. cit., 63, for the quotation.

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election, although KADU at that time had no clear notion of how this goal might be achieved in constitutional terms. What became the '*majimbo* constitution' was initially drafted by the New Kenya Group, during the latter months of 1960, as they framed a pro-federalist manifesto for the protection of European interests. By November 1960, Blundell already felt confident enough of gaining significant African support to declare that the animosity toward dominance by Gikuyu and Luo would 'undoubtedly' lead 'to a civil war' in Kenya if a federal system was not instituted.[14] While many smaller European settler farmers worried that regionalism might undermine their claims to land rights through a Central Land Board — and this more than any other issue turned them away from supporting the NKG — *majimboism* was possibly the only issue upon which the African members of KADU and their European allies could easily agree by the end of 1960. The general election result of February 1961 only served to strengthen the resolve of both KADU and the Europeans that a *majimbo* constitution was crucial to their political survival. KANU gained 67.4 per cent as opposed to KADU's 16.4 per cent of the total vote in these polls, but the distribution of seats won showed very clearly that KADU's base of support lay only in the Rift Valley and Coastal constituencies. It was evident that KADU would be very unlikely to overcome such a deficit in any subsequent national elections, and that without very substantial protection European representation would be obliterated.[15]

The principal authors of the federal constitution within the New Kenya Group found enthusiastic *majimboist* supporters within KADU. Alongside Blundell, Havelock, Reginald Alexander and Rhoderick Macleod, Peter Okondo emerged as the leading KADU draughtsman of the proposed constitution. A former associate of KANU's Oginga Odinga, Okondo had failed to win nomination for a KANU seat in Nyanza in 1960, and so joined KADU, winning a seat for his new party as a National Member. In collaboration with Blundell and Havelock, it was Okondo who helped to draft proposals along lines that married American and Swiss notions of federalism.[16] KADU's commitment to *majimboism* now had substantive policy aims, which were taken up in the political speeches of Ngala, Moi, Shikuku and Muliro. Between August and October 1961, the '*majimbo* constitution' cast an ever-lengthening shadow over the colonial government's talks with KADU and KANU, the two parties seemingly further than ever from compromise. By the time that KADU delegates arrived in London for the Second Lancaster House conference in February 1962, the party was firmly committed to a federal constitution. KADU had by then engaged the Swiss constitutional lawyer Dr Edward Zellweger as an adviser, and in the British parliament the Conservative MP Frederic Bennett was energetically directing a ginger group of Tories to promote the KADU proposals to give Kenya's politics a 'tribal foundation'.[17]

14 Wasserman, *Politics of Decolonization*, op. cit., 99.
15 George Bennett and Carl Rosberg, *The Kenyatta Election 1960–61* (Oxford 1961).
16 Kyle, *The Politics of the Independence of Kenya*, op. cit., 137–8.
17 Ibid., 137.

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The alliance with KADU and the vehicle of *majimboism* allowed the NKG to cloak the protection of European political interests behind the 'legitimate' fears of African minorities. Writing his first volume of memoirs, published in 1964 only shortly after Kenya's independence, Michael Blundell presented this commitment to *majimboism* purely as a concern of the African elements within the KADU alliance: 'Regionalism, or "Majimbo" as it was called, had an immediate and attractive appeal to tribes in all the rural and remote areas of Kenya', he wrote, 'as it offered them a measure of control over the issues of which they were most apprehensive, such as land, education, the police, and the composition of the Civil Service.'[18] Thirty years later, his posthumously published second volume revealed a more candid picture of the political manoeuvrings of the moment: 'I did not personally think regionalism was a permanent solution to Kenya's political future', he wrote, 'but it was obvious that something of the sort was necessary if severe internal tensions were not to arise.' Blundell recalled that he feared that an overly centralized government would 'be a recipe for civil war at some time in the future and would further accentuate the already strong tribal feelings'.[19] Other Europeans then held similar views. When Reginald Maudling visited Kenya in November 1961, having taken over as Secretary of State from Iain Macleod only one month earlier, he was deeply alarmed by the intensity of the ethnic rivalries he witnessed among the African politicians. Maudling thought 'tribalism' to be 'more immediately explosive than racialism', and was 'quite certain that there is a danger of serious tribal clashes in this country unless a solution is found'.[20]

If the 'fear factor' had driven Muliro, Moi, Ngala and others toward *majimboism* in the first place, as Rothchild has argued,[21] by 1961 the agitation within KADU was causing British politicians and officials to waver. As the Second Lancaster House talks approached, scheduled for February to April 1962, KADU leaders did their level best to promote federalism as a condition of their participation. Various statements expressed fears of the fate of lesser groups should federation not be accepted, and there were frequent threats of resignation. While Somali politicians would eventually look toward a political future beyond Kenya, no other group ever seriously canvassed for secession, although hotter heads were prone to suggest it as a possibility. In a speech delivered in Iten in October 1961, KADU's William Murgor had raged against the presence of Kikuyu squatters in the Kapsabet forest and threatened that KADU 'Youth Wingers' would remove them violently if the government could not do so through legislation.[22] At a KADU rally in Kimilili, Moi referred directly to

18 Michael Blundell, *So Rough a Wind* (London 1964), 298–9.

19 Michael Blundell, *A Love Affair with the Sun. A Memoir of Seventy Years in Kenya* (Nairobi 1994), 116.

20 The quotation is cited in Morton, *Moi*, op. cit., 113.

21 Donald Rothchild, 'Majimbo Schemes in Kenya and Uganda' in Jeffrey Butler and A.A. Castagno (eds), *Boston University Papers on Africa. Transition in African Politics* (New York, Washington, DC and London 1967), 291–310.

22 Kyle, *The Politics of the Independence of Kenya*, op. cit., 139, giving a first-hand account.

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the fears of Gikuyu incursions and KADU's determination to stand firm on *majimboism*: 'Her Majesty's government must sanction regionalism before handing over power to the African if there is to be peace in Kenya.' This was typical of the rhetoric of the time, especially in those Kalenjin areas of the Rift Valley where fears of a 'Gikuyu land-grab' were strongest. The rifts between KANU and KADU were by now 'deep and deeply felt', and in the Lancaster House talks Moi would repeat the threat that 'the people of Kalenjin were prepared to fight and die for their land'.[23] The KADU delegation to the Lancaster House talks of February 1962 was on the defensive from the outset, steadfastly refusing to discuss other matters until principles regarding the 'structure of government' had been hammered out. Regionalism had become the first, and perhaps the only principle of KADU's political manifesto.

The substance of KADU's plans for a '*majimbo* constitution' gradually became clear as the Lancaster House talks rolled on. They wished to create six regions, alongside the federal capital territory of Nairobi. A bicameral legislature would comprise an upper house representing the regions, to which each region would elect seven representatives from their own Regional Assembly, and a lower house elected by universal adult suffrage in 71 constituencies. The two tiers would have equal powers of legislation, but the upper house would approve key appointments to the courts and armed forces. A Federal Council of Ministers would comprise 10 to 15 members, at least one but no more than three drawn from each region. The Council would elect its own chairman as Head of State, a post that would rotate on an annual basis. Each region would have its own Assembly with legislative powers and an executive headed by a President, who would be elected from among members of the Assembly. Each region would have its own civil service and its own police — who would implement federal laws as well as regional legislation. To describe this as a cumbersome structure would be to understate the obvious. Moreover, it was a structure that Kenya could ill afford. Maudling supported the political goal of KADU's aspirations as a bulwark against Kenyatta (still regarded as a terrorist) and Odinga (distrusted for his communist leanings), but he had been warned by the Colonial Office that Kenya simply could not afford an expensive federal system of government.[24]

The compromise proposals put forward by Maudling fudged the issue and left key questions unanswered. KADU was given a commitment to regional assemblies, but the precise character of those bodies, their composition and their exact relationship to central government remained to be worked out. KANU, on the other hand, signed up to the assurances that the authority of the central government would not be undermined, particularly with regard to the disbursement of budgets to the regions. On key areas, such as the civil service, regional boundaries and constituency delimitation, all of which would ultimately be crucial to the powers and operation of the regional assemblies,

23 Morton, *Moi*, op. cit., 110, 100 and 112.

24 Kyle, *The Politics of the Independence of Kenya*, op. cit., 144–7.

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Maudling pledged to set up commissions of enquiry to determine the best way forward. This interim settlement was loaded with contradictions and unresolved issues. KADU's delegation undoubtedly saw the dangers of this, particularly in the light of the party's weak political position within Kenya. Ngala made every effort to push Maudling toward firmer public commitment on *majimboism*, but failed to persuade the Minister that this would do enough to strengthen KADU's position without compromising British relations with KANU. For its part, KANU's more measured response to the proposals was calculated on a longer-term strategy. In London, they adopted a conciliatory tone to cloak their disdain for the KADU proposals, and allowed themselves to be persuaded to accept compromises. In Kenyatta's judgment, *majimboism* was practically unworkable and could anyway be outflanked once power was achieved. He never doubted that KANU would defeat KADU at the ballot box, and at that point KANU must be ready to make the constitutional changes necessary to do away with *majimboism*.[25] This, in the event, was exactly what happened.

Though neither KADU nor KANU had got what they wanted in London, both agreed to participate in an interim government that would take Kenya through to the final elections prior to independence. However, once back in Nairobi, KANU immediately mounted a political offensive in which it dismissed *majimboism* as anti-nationalist and KADU as 'tribalists'. Although KANU had agreed to regional assemblies at the Lancaster House talks, its senior politicians, including Tom Mboya, now made it clear that they had no intention of honouring that agreement in practice. In the face of this well-organized and efficient KANU campaign, KADU lost ground very rapidly. When Reginald Maudling again visited Nairobi in July 1962, he found KADU's leaders in angry and belligerent mood. Ngala openly accused KANU of playing a double game, and told Maudling of his belief that the expatriate civil service was working in KANU's favour and against KADU's regional ambitions. 'I must tell you bluntly', he warned Maudling, 'that if the degree of regionalism agreed in London is whittled down our people will not be prepared to continue in a Kenya such as KANU envisages.' Maudling could only reassure him that the boundaries commission had not yet sat, and that this might be the focal point for the revival of KADU's *majimboist* campaign.[26]

Chaired by Sir Stafford Foster-Sutton, the Kenya Boundaries Commission was one of five commissions appointed by Reginald Maudling at the Second Lancaster House talks. The commission toured the country in August and September 1962, hearing evidence from 210 deputations. It found that opinions were strongly held — Kenyans had very clear views on whom they

25 Odinga, *Not Yet Uhuru*, op. cit., 229, confirms that this was the decision taken.

26 Kyle, *The Politics of the Independence of Kenya*, op. cit., 162, quoting Public Record Office (PRO) CO 822/2835, Ronald Ngala's address to the Secretary of State on his visit to Kenya, 7 July 1962.

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wished to share their region with, and with whom they did not.[27] The fiercest debates then, as now, about rights to land and political legitimacy arose in 'border' areas where diverse populations were intermingled, and especially in areas where colonial policies had brought influxes of new settlement. History was invoked as the determinant of these rights, with one community after another laying down their claims in terms of historical precedent and acknowledged status. Colonial documents were displayed as 'proof' of dominance through their confirmation of status and rights; the lineages of chiefs were set out as evidence of the source of political power, and ethnographies written by Europeans held up as definitive sources on ethnicity and cultural affinity. The French geographer Claire Medard has argued that this mélange of ethnic claims and counter-claims is best understood as 'the politics of territoriality'. By this she means that it was about more than merely rights to land: it was also about the legitimacy of political authorities. The claims made were thus very firmly rooted in the politics of colonial rule. In this way, argues Medard, Kenya's post-colony embraced the political blueprint of colonial territoriality in terms of both space and power.[28]

KADU and KANU each mobilized their supporters to petition the commission. KANU's demands centred upon the retention of the existing provincial boundaries, which would ease the transition to a post-colonial administration. The maintenance of the status quo was presented as having historical validity — these were 'established boundaries', within which communities had lived contentedly for many years. But given the regular fiddling with colonial administrative boundaries over that period, KADU did not find it difficult to challenge this claim. KADU supporters coming before the commission took every opportunity to illustrate the many changes that had been made to colonial provincial boundaries in past years. Among the most emphatic of witnesses was Senior Chief Chemweno Cheboi, from the Kalenjin-speaking Marakwet district, who made his point by producing an old photograph of those in attendance at a meeting in Nakuru of the representatives of the Local Native Councils under the Rift Valley Provincial administration of the 1930s. Cheboi 'remembered the days when . . . West Pokot, Trans Nzoia, Elgeyo-Markawet, Uasin Gishu, Baringo, Nandi, Samburu, Laikipia and Naivasha were all represented at such meetings'.[29] KADU's supporters were also well schooled in emphasizing the rights of local communities. Chiefs Pkemei Lobit and James Powon of Pokot, for example, were typical of those who demanded 'a regional form of government', so that 'different peoples can live their lives

27 The papers of the Kenya Regional Boundary Commission (Foster-Sutton) can be found in PRO CO 897/1–9.

28 Claire Medard, 'Les conflits "ethniques" au Kenya. Une question de votes ou de terres?', *Afrique contemporaine*, no. 180 (1996), 62–74; Claire Medard, 'Dispositifs electoraux et nationalismes ethniques. Reflexions sur quelques stratégies territoriales du régime kenyan', *Politique africaine*, no. 70 (1998), 32–40.

29 PRO CO 897/7, Kenya Regional Boundaries Commission 1962, record of oral presentations, part 1, 'Meeting with a delegation from Elgeyo-Marakwet African District Council, at Eldoret, 3 September 1962', 196–7.

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without undue interference from central government'.[30] But in those areas of the Rift Valley where Gikuyu had settled and were making claims to land, matters could not be so easily determined only in local terms. The Marmanet forest, on the edge of the Laikipia escarpment, was typical of a Kalenjin area where Gikuyu squatters had come into the forests and filled the labour lines of the surrounding farms. Here, the claims of the local Kalenjin, in this case Tugen, were supported by the administration, 'who sought to build up a Kalenjin claim out of gratitude for the help which they rendered during the Emergency', but were challenged by local European farmers who supported the claims of their Gikuyu farm labourers to be given smallholdings. As the Ol Arabel Farmers' Association told the Boundaries Commission, 'the Gikuyu most certainly have the strongest claim'.[31] Others thought differently. The delegation from the KADU branch at Thomson's Falls demanded that all the lands of Laikipia, Nanyuki and Samburu, including the Marmanet forest, 'should be returned' to the Maasai and their allies. 'We were forced by the Europeans to leave these lands', they told the commissioners, 'but the time is now ripe for us to have our own land back.' They made threats against the Gikuyu in these districts, whose claims to land they dismissed. If the British wanted the Maasai to fight after independence, they concluded, 'then let them overlook our demands'. These KADU members signed themselves 'yours in struggle for *majimbo*'.[32]

When the KANU delegation came to the parliament buildings to meet Foster-Sutton's commission on 14 August 1962, it presented a case for retaining the colonial status quo of provinces and national administrative structures. Jomo Kenyatta led the delegation. 'These provinces have been working harmoniously for nearly 70 years now', he told the commissioners. 'The people in these provinces have learned to work together; they have something in common.'[33] Conscious of the need to undermine any appearance of unity among those peoples who ostensibly supported KADU, Maasai and Kalenjin politicians were members of the KANU delegation. John Keen, representing Maasai, spoke of the dangers of KADU regional dictatorships: 'The Kalenjin number about 750,000 while the Masai (sic) are about 70,000, and since the Kalenjin are our traditional enemies, we could not live harmoniously with them.' Christopher Kiprotich warned the commissioners not to believe KADU claims that KANU had no support among the Kalenjin, asserting that many Nandi, like himself, did not want KADU regional politics.[34] The most telling

30 PRO CO 897/1, Kenya Regional Boundaries Commission 1962, Memoranda — Rift Valley Province, 'Memoranda from the Chiefs of the Pokot', August 1962.

31 PRO CO 897/1, Kenya Regional Boundaries Commission 1962, Memoranda — Rift Valley Province, 'Memorandum from the Ol Arabel Farmers' Association', August 1962.

32 PRO CO 897/1, Kenya Regional Boundaries Commission 1962, Memoranda — Rift Valley Province, 'Memoranda from the KADU Branch Officers, Thomson Falls', 29 August 1962.

33 PRO CO 897/7, Kenya Regional Boundaries Commission 1962, record of oral representations, part I, The Honourable Mr J. Kenyatta, MLC, 56.

34 PRO CO 897/7, Kenya Regional Boundaries Commission 1962, record of oral representations, part I, the Hon. Mr J Keen, MLC, and Mr Christopher Kiprotich, 59–60. Keen's comments

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comments came from Mwai Kibaki, who would become Kenya's President at the head of the party that finally ousted KANU from power in 2002, but in August 1962 was KANU's articulate Executive Secretary and rising political star. Kibaki first spoke of the need for unity and cultural integration, 'otherwise we shall never at any time have one nation in this country'. The burden of his argument, however, was economic. The existing provinces and districts already had a costly infrastructure which it would be expensive to replicate for any new arrangements, 'particularly when there are no benefits other than the theories which have been put forward'. Moreover, he pointed out the impossibility of ensuring that the provinces would be of equivalent size, or of equivalent resources. Kibaki thought that the seeds of future troubles might lie in any accentuation of these differences through political empowerment. 'We ask you to let us remain with the present boundaries', he therefore concluded, 'and let us try to work them as the new regions. We are confident that in that way we shall consolidate what advance there has been toward social integration, and we shall have a basis for further integration, which is what you, we ourselves, and everybody else wants.'[35]

But Foster-Sutton was not persuaded by KANU's plea for political continuity, and instead his Commission opted to make several adjustments to Kenya's boundaries. The commissioners had been surprised by the 'full extent of group suspicions and hostilities', but there is surely some truth in Rothchild's suggestion that the very creation of the commission had served to give vent to the 'open expression of fears and animosities' and had raised 'tribal tensions to new heights'.[36] As Kibaki had warned, their decisions ultimately proved difficult to reconcile with the full range of claims that had been set down. Boundary alterations could not possibly satisfy everyone. In the wake of the publication of the report, there was a flurry of further disputes. By far the most significant was over the status of Kitale. Abaluhya leaders, including KADU's Muliro, had wanted Kitale to be the capital of Western Region, but the commissioners placed it within an enlarged Rift Valley. The quarrel fomented a brief crisis within KADU, revealing the vulnerability of its ethnic-based coalition as Kalenjin and Abaluhya members opposed one another, but this was quelled by Moi's speedy decision that the party should support the Abaluhya claims. It was agreed within KADU that the Rift Valley Regional Assembly would use its constitutional powers to transfer Kitale to Western Region after independence.[37] KADU had thus narrowly averted a potentially destructive crisis, but it was KANU which would have the final word on the fate of Kitale and of *majimboism*.

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deliberately took up earlier assertions by Ronald Ngala that 'the adoption of an orthodox Westminster pattern for Kenya would inevitably result in placing absolute power in the hands of a dictator'. The statement was made in February 1962, and is quoted by Rothchild, 'Majimbo Schemes', op. cit., 294.

35 PRO CO 897/7, Kenya Regional Boundaries Commission 1962, record of oral representations, part I, Mr Mwai Kibaki, 64.

36 Rothchild, 'Majimbo Schemes', op. cit., 301.

37 Ibid., 302–3.

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The elections that brought Kenya to independence took place in May 1963. It was an unusually complex event, with electors voting for the seven Regional Assemblies (with 211 members, 26 of them Specially Elected), the Senate (one member from each of the 40 districts, plus one for Nairobi), and the House of Representatives (with 117 single-member constituency MPs, plus 12 Specially Elected members to be nominated by the House).[38] Better financed than KADU, thanks to support from outside Kenya, and far better organized — having learned from the experience of 1961 — KANU went to the polls as firm favourites to win a majority in each of the ballots. In the campaign, KANU made it all too plain that it had little intention of operating the constitution that British compromise and KADU had forced upon it. Joseph Murumbi best summed up KANU's collective voice on *majimboism*, declaring that his party would not 'stand by and watch the country go to ruin because a few people want to carve out little kingdoms for themselves under the guise of protecting tribal interests'.[39] While KADU's leaders blustered and threatened, their campaign wilted through lack of money, too few campaign workers, and — fatally — not enough candidates. In the election for the House of Representatives, KADU only managed to field candidates in 59 constituencies, and was compelled to fight only in seats where the party was most likely to win. These were signs of weakness that betrayed its lack of national coverage. When the results came, they were a disaster for KADU. In the elections to the House of Representatives, KANU took 72 seats (including one KADU candidate who immediately crossed over), while KADU gained only 32. In the Senate, KANU also obtained a majority, taking 20 seats out of 41. But it was in the elections to the Regional Assemblies, where KADU had expected to make its best showing, that KANU's success was most apparent: the six regions were split evenly between the two parties, with KADU gaining control in Western, Rift Valley and Coast, while KANU won majorities in Central, Nyanza and Eastern.[40] The KANU interim government was formed on 1 June 1963, with Jomo Kenyatta at its head.

By the time of the Third Lancaster House Conference in September 1963, KADU was crumbling. A trickle of members had already crossed the floor to KANU, and Kenyatta was now openly deriding the *majimbo* constitition as unworkable and calling on opposition members to join KANU in a government 'of national unity'. In London, KANU now demanded major changes to the 'embarrassingly complicated'[41] *majimbo* constitution, while KADU fought for the safeguards to be retained. As British reluctance to block KANU became clearer, the usually temperate Ngala threatened to proclaim autonomy for

38 PRO CO 822/3166 for the details.

39 Reported in the *Daily Nation*, 6 May 1963, and quoted in Clyde Sanger and John Nottingham, 'The Kenya General Election of 1963', *Journal of Modern African Studies*, 2 (1964), 16.

40 Sanger and Nottingham, 'The Kenya General Election of 1963', op. cit., for a summary, and PRO CO 822/3166 for the full results.

41 The phrase is Kyle's, 'The Politics of Independence in Kenya', *Contemporary British History*, 11 (1997).

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the Coast if all the protections were not left in place. At the lowest point of the discussions, a desperate Ngala formally requested the partition of Kenya.[42] In the wake of defeat, Ngala, Moi and the KADU leadership had belatedly come to realize that the British would not be in a position to ensure that constitutional commitments were honoured after independence.[43] Kenya's new governor Malcolm MacDonald had all along worried about the possibility of the Kalenjin and Maasai reacting violently if the tide of politics turned against them, but he now decisively intervened to argue that the British should back KANU and face down the KADU opposition — even if this might provoke disturbances.[44] MacDonald showed the foresight and courage that Renison had lacked. The British government therefore agreed to a change that would permit alterations to the constitution on a two-thirds majority in the House of Representatives, thereby significantly reducing the protections that regionalism had offered. *Majimboism* would still be implemented, according to the agreement reached in London, but it would be the responsibility of Kenyatta's anti-*majimbo* government to see that this was done.[45] This gave KANU the leverage it would need to diminish the powers of the regions, and it marked the death knell of KADU's *majimboist* ambitions.

At independence, on 12 December 1963, while Kenyatta took the helm of central government, Moi assumed leadership of the Rift Valley House of Representatives, and Ngala took the same post for the Coast Province. Far from consolidating their political power, both men quickly realized that they had been marginalized. Both were hindered at every turn by a central government unwilling to support any feature of the *majimbo* constitution. Without authorized funds from central government, and without logistical or technical support, the regions simply could not function in any meaningful sense. In the most dramatic demonstration of the power of central government over the regions, Minister of Home Affairs Oginga Odinga refused to sign the order transferring Kitale from Rift Valley to Western Region 'until the people affected by the transfer were first consulted'. Moi and Muliro found themselves powerless to enforce KADU's internal decision.[46] With the die re-cast, several of KADU's leading lights now took a pragmatic look at their circumstances. MacDonald purposefully withdrew from arbitrating disputes between the KADU Regional Assemblies and KANU, enhancing Kenyatta's power in the process and weakening the position of KADU nationally. Further defections to KANU soon followed, among them William Murgor and others who

42 PRO DO 168/49, Sandys to Griffiths-Jones, 13 October 1963. For context, see Kyle, *The Politics of the Independence of Kenya*, op. cit., 189–93.

43 Morton, *Moi*, op. cit., 116.

44 PRO DO 168/45, Malcolm MacDonald to Sandys, 15 September 1963, and PRO DO 168/49, MacDonald to Griffiths-Jones, 18 October 1963.

45 For the final constitutional settlement, see Kenya Independence Conference, Cmnd 2156 (HMSO, October 1963), and especially Annex A, 'Statement at the Final Plenary Session', by Duncan Sandys.

46 Rothchild, 'Majimbo Schemes', op. cit., 303.

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had been staunch advocates of *majimboism*.[47] By June 1964, Ngala and Moi had come to the hard decision that they could not continue. When they met with other KADU leaders to discuss the position, it was Towett who proposed that they join with KANU in a government of national unity. Seroney had already crossed the floor, breaking Kalenjin unity, and Towett now announced that he would no longer stand on a KADU ticket. Moi was faced with the dilemma of how best to preserve his local support among the Kalenjin. He opted for the pragmatic solution of taking them into KANU, from where he struggled to broker a more satisfactory settlement for his people. But in doing so, according to his biographer, Moi never gave up his belief in *majimboism*.[48] By November 1964 Ngala had dissolved the opposition. Kenya had, in effect, become a one-party state. That same month, the *majimboist* constitution was laid to rest when a bill amending its provisions received the necessary two-thirds majority in the House of Representatives.

Paradoxically, it was the strongest *majimboist* of all among the KADU ranks Daniel arap Moi who best survived the political transition into KANU. Moi was a political pragmatist who had no pretence to nationalist ambitions. His support among the Kalenjin was firm and secure, so he brought with him a loyal following. Win over Moi, the KANU party fixers quickly realized, and you win over the reliable support of the Kalenjin. Neither Muliro, struggling to contain dissent among his Abaluhya constituents, nor Ngala, faced with a variety of energetic rival political movements at the Coast, could command the same level of regional support. Moi was thus the only ex-KADU leader who was rewarded with a portfolio in the Kenyatta Cabinet of 1964. By 1966, after the resignation of Joe Murumbi, the still *majimboist* Moi was elevated to the post of Vice-President.[49] A decade later, in 1978, Daniel arap Moi took the presidency upon Kenyatta's death, a compromise choice who was intended merely to 'hold the fort' until KANU could resolve the power struggle between its leading lights. But Moi would never give them the opportunity to remove him. Once in power, he deployed his old skills as the architect of the KADU alliance to broker a series of bilateral political bargains that undermined the old corporatist structures of KANU and secured his personal authority. In these acts he rapidly made KANU less nationalist in its politics, and far more like the old KADU — a party reliant upon an alliance of politicians who were firmly rooted in the local politics of patronage and redistribution, and a party that held within it supporters of *majimboism*. Under Moi, KANU would become KADU reborn.[50]

47 Kyle, *The Politics of the Independence of Kenya*, op. cit., 192.

48 Morton, *Moi*, op. cit., 117–18.

49 Ibid., 120.

50 These comments, and the final paragraph, summarize David M. Anderson, 'Le Declin et la chute de la KANU. La recomposition des parties politiques dans la succession de Moi', *Politique africaine*, no. 90 (June 2003), 37–55, and 'Kenya's Elections 2002 — The Dawning of a New Era?', *African Affairs*, 102 (2003), 331–42.

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The nationalist project has been a casualty of Kenya's return to multi-party democracy since 1990, in no small part due to the activities of the Moi regime. *Majimboism* has returned as a political policy, first promoted from within KANU by Moi's Kalenjin and Maasai supporters seeking to defend themselves against the rising tide of opposition, and then by those in other parties who argued for constitutional reform as the only way of challenging the destructive authority and exclusionary tactics of Kenya's one-party state. Moi's KANU regime survived two multi-party elections (1992 and 1997) before being defeated at the polls in December 2002. Now in opposition, and with its core support limited to two regions, Rift Valley and North-Eastern, several of the most influential of KANU's Kalenjin MPs have made clear their support for *majimboism*. And within the ruling party coalition there are also several prominent *majimbo* supporters, likely to be sympathetic to proposals for constitutional reform that would devolve power to the regions. This decentralization of political power is now presented as a necessary element in the cultivation of Kenya's multi-party democracy.[51]

In the context of Kenya's current post-nationalist debate about the decentralization of political power, the old dismissive views of *majimboism* can therefore no longer be sustained. To describe the emergence of *majimboist* politics in the early 1960s as a distracting political tactic for which there was little real support, or as a temporary expedient for the convenience of the European minority, is to ignore its enduring place in Kenya's political debates since independence. The colonial template from which the modern Kenya state was made sustained a form of nationalist government that did not allow for the evolution of decentralized political authority. Kenya still has no system of elective local government, and the daily administration of the provinces and districts remains under the direct control of the Office of the President without reference to parliament. These were features of colonial rule that the *majimboists* of the 1960s unsuccessfully sought to challenge in their vision of Kenya's future. The fear that provoked the politics of *majimboism* in both the 1960s and the 1990s was too often manifest in a belligerence that alienated the support of the majority of Kenyans, but this should not be allowed to obscure the importance of the historical roots of the debate about decentralization and local political representation. In the longer run of Kenya's history, *majimboism* may yet turn out to be a more enduring political project than was nationalism.

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51 For a clear statement on this from a current Cabinet minister, see Kiraitu Murungi, 'Ethnicity and Multi-partyism in Kenya', reprinted in Kivutha Kibwana (ed.), *Constitutional Law and Politics in Africa. A Case Study of Kenya* (Nairobi 1998), 434–5, and originally published as Kenya Human Rights Commission, *Thoughts in Democracy Series, Issue III* (Nairobi, 1995).

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